

HOUSE No. 2612

The Commonwealth of Massachusetts

PRESENTED BY:

Paul K. Frost

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to health insurance and incarcerated individuals.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/15/2025</i>

HOUSE No. 2612

By Representative Frost of Auburn, a petition (accompanied by bill, House, No. 2612) of Paul K. Frost relative to incarcerated persons covered by health insurance plans. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2327 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to health insurance and incarcerated individuals.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 127 of the General Laws, as appearing in the 2018 Official Edition, is hereby
2 amended by inserting after section 17D the following new section:-

3 Section 17E. For any incarcerated individual covered by a health insurance plan, either
4 through the individual or the individual's family, the contracted health insurance carrier shall pay
5 for all covered medical care under the health insurance plan. If the individual or the individual's
6 family cannot afford to pay for co-payments or deductibles under the health insurance plan, then
7 the health insurance carrier may seek reimbursement from the department of corrections. Health
8 insurance carriers shall waive any and all additional fees or costs associated with the use of a
9 non-preferred medical provider for such services while the covered individual is incarcerated